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LINE: 3

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY MODERN RAILWAY SYSTEMS

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, TransitAmerica Services, Inc., and Herzog Transit Services, Inc. (collectively, “Defendants”) motions to compel third-party Modern Railway Systems (“MRS”) to comply with a subpoena for business records is **GRANTED IN PART**, as modified below. Defendants’ request for sanctions is **DENIED**.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

Defendants served MRS with the subject subpoena on April 4, 2025. (Walker Decl., ¶ 2, Ex. 1.) MRS served objections on April 25, 2025. (Id., ¶ 3, Ex. 2.) The parties began meeting and conferring on May 16, 2025. (Id., ¶ 4, Ex. 3.) Although the parties resolved several issues, disputes remain concerning Request Nos. 5 and 17. Defendants subsequently agreed to limit the requests to work performed during the five months preceding Plaintiff’s accident. (Walker Decl., ¶ 14, Ex. 11.)

LEGAL STANDARD

Discovery orders are reviewed for abuse of discretion because management of discovery lies within the sound discretion of the trial court. (*Manuel v. Superior Court* (2022) 82 Cal.App.5th 719, 727.)

A party may obtain discovery of nonprivileged matters relevant to the subject matter of the action if the information is admissible or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) Discovery from a nonparty may be obtained through a deposition subpoena. (Id., §§ 2020.010, 2020.410.)

A party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought and may not rely on generalities. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.) The

Court may modify a subpoena or direct compliance upon terms necessary to protect the nonparty from unreasonable or oppressive demands. (Code Civ. Proc., § 1987.1.)

ANALYSIS

Defendants seek documents concerning work performed on the AFTAC/utility/junction box located near the bridge and documents evidencing Bass Electric's work in the vicinity of the bridge. Defendants contend the records are relevant because Plaintiff's co-workers testified that Plaintiff was walking to the AFTAC box when he fell, and the requested records may establish what work was being performed in the area at or near the time of the accident.

The Court finds Defendants have established good cause for **limited** discovery. Records identifying or describing work actually performed or scheduled on the identified equipment at or near the time of the accident may bear on whether Plaintiff was proceeding to that equipment for work when he fell. Similarly, records identifying Bass Electric work occurring in the vicinity of the bridge during that same period may bear on the work being performed and conditions existing at the location.

Defendants have not, however, established good cause for five months of "all documents" concerning such work. The requests, even as informally narrowed, remain substantially broader than the evidentiary justification offered. MRS also presents evidence that the Project contains more than one terabyte of data maintained across numerous custodians and that a broad production would require substantial manual review. The appropriate remedy is therefore to narrow the subpoena rather than compel production as presently framed.

Accordingly, the motion is **GRANTED IN PART** as follows:

Request No. 5: MRS shall produce documents sufficient to identify or describe work performed or scheduled to be performed on the AFTAC box, utility box, or junction box identified in Request No. 5 **on August 25, 2022, and during the seven days preceding August 25, 2022**, including responsive photographs, reports, drawings, work orders, schedules, or similar records.

Request No. 17: MRS shall produce documents sufficient to identify or describe work performed or scheduled to be performed by Bass Electric in the vicinity of the Oregon Expressway Bridge **on August 25, 2022, and during the seven days preceding August 25, 2022**, including responsive photographs, reports, work orders, or schedules.

Nothing in this order requires MRS to produce documents falling outside the subject matter of Request Nos. 5 and 17.

Defendants' request for monetary sanctions is **DENIED**. MRS was substantially justified in opposing the motion because the requests, even after the parties' informal five-month limitation, were materially broader than the discovery for which Defendants established good cause. (Code Civ. Proc., § 1987.2, subd. (a); see also id., § 2025.480, subd. (j).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant

to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

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DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL PLAINTIFFS TO PRODUCE UNREDACTED CELL PHONE RECORDS

TENTATIVE RULING:

For the reasons stated below, Defendants Transitamerica Services, Inc., Herzog Transit Services, Inc., and Peninsula Corridor Joint Powers Board’s Motion to Compel Plaintiffs William Rogers and Sarah Rogers to Produce Unredacted Cell Phone Records is **DENIED**. Plaintiffs’ request for monetary sanctions is **GRANTED** in the amount of \$10,060.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

Defendants subpoenaed Plaintiffs’ telephone carrier for records reflecting call and text activity from August 24 through August 26, 2022. The carrier declined to produce the records without Plaintiffs’ authorization. Code of Civil Procedure section 1985.3, subdivision (f), provides that a subpoena for personal records maintained by a public-utility telephone corporation is not valid or effective unless it includes the consumer’s signed consent to release the records. Public Utilities Code section 2891 likewise restricts a telephone corporation from disclosing a residential subscriber’s personal calling patterns without written consent.

Following meet-and-confer efforts, Plaintiffs and Defendants agreed that Plaintiffs would authorize production of records for the period beginning at 7:00 p.m. on August 24, 2022 and ending at 3:00 a.m. on August 25, 2022. The carrier thereafter produced records extending beyond that agreed period. Plaintiffs redacted information outside the agreed window and produced the remaining records to Defendants. Because the carrier records were reported in Coordinated Universal Time (“UTC”), Plaintiffs’ counsel converted the entries to Pacific Daylight Time (“PDT”) in determining which records fell within the agreed production period.

Defendants now seek an order compelling Plaintiffs to produce the entirety of the carrier’s unredacted records from August 24 through August 26, 2022. The Motion identifies no discovery request directed to Plaintiffs requiring production of those records and no statutory procedure under which the Court may